

2023 P L C (C.S.) 484

[Lahore High Court]

Before Jawad Hassan, J

WAQAS RASOOL and others

Versus

SECRETARY SCHOOL EDUCATION and others

Writ Petition No.31205 of 2020, heard on 16th November, 2022.

(a) Civil service ---

---Appointment---Suitability of candidate---Policy matter---In assessment of suitability of a particular nature of job and its scope in the context of particular employer the Courts cannot prescribe the eligibility or experience qualifications and work experience as these are matters of policy and best is to leave them to the department.

(b) Civil service---

---Upgrading of post---Policy matter---Not the domain of the Courts to embark upon an inquiry as to whether a particular policy is wise and acceptable or whether better policy could be drafted--Court can only interfere if the policy framed is absolutely capricious and non-informed by reasons, or totally arbitrary, offending the basic requirement of the Constitution---Department has to decide how and in what manner the reservations should be made and such a policy decision normally would not be open to challenge subject to its passing the test of reasonableness.

The Secretary Punjab Public Service Commission, Lahore and others v. Aamir Hayat and others 2019 SCMR 124 and M. Nazir Ahmad v. Muhammad Aslam and others 2013 SCMR 363 ref.

Ch. Wasim Ahmad for Petitioners.

Ms. Maria Farooq, Assistant Advocate General with Mrs. Naseem Mushtaq, Law Officer, Finance Department for Respondents.

Date of hearing: 16th November, 2022.

JUDGMENT

JAWAD HASSAN, J.---The Petitioners have invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging a quasi-judicial order dated 12.03.2020 passed by the Respondent

No.1/Secretary School Education pursuant to directions issued in W.P.No.6241 of 2020 on 04.02.2020. They have also challenged their demotion order passed by the Respondent No.6.

2. The case of the Petitioners in nutshell is that they were appointed as Data Entry Operator (BS-12) on contract basis in the Directorate of Staff Development Department Punjab on 20.11.2013 and subsequently their services were regularized on 29.08.2018. As per their version, the posts held by them were upgraded from Data Entry Operator (BS-12) to Computer Operator (BS-15) in terms of letter dated 17.04.2019 which was subsequently withdrawn by the Respondent No.6 by demoting them as Junior Computer Operator (BS-12). The said demotion order was challenged through above mentioned writ petition pursuant to which the impugned order was passed. Now they have prayed for setting aside of the same inter alia on the ground that they possessed required qualification as per Clause-III of the Notification dated 14.12.2018 (the "Notification") which reads that "where the posts were personally up-graded due to having long stay in the same scale, the incumbents for such posts would be placed in the cadre according to possessed qualification. However, personal scale would continue as personal to such incumbents". The counsel for the Petitioners have relied on "Muhammad Rafi and another v. Federation of Pakistan and others" (2016 SCMR 2146), "Mst. Shahnaz Akhtar v. Water and Power Development Authority through Director General and 2 others" (2019 PLC (C.S.) 1139) and "Regional Commissioner Income Tax Northern Region, Islamabad and another v. Syed Munawar Ali and others" (2017 PLC (C.S.) 1030).

3. Report and parawise comments were filed on behalf of the Respondents. Learned Law Officer vehemently denied the stance taken by the Petitioners solely on the grounds that they were rightly demoted to Junior Computer Operator (BS-12) in terms of advice dated 24.12.2019 issued by the Finance Department as they were granted upgradation as Computer Operator (BS-15) subject to certain terms and conditions which were accepted by them and now cannot deviate therefrom. She prayed for dismissal of this petition on the ground that the impugned order has rightly been passed by the Respondent No.1.

4. I have heard learned counsel for the parties and have gone through the available record.

5. The appointment of the Petitioners as Data Entry Operator (BS-12) vide order dated 20.11.2013 on contract and their subsequent regularization on 29.08.2018 under the Regularization of Service Act, 2018 is not disputed by the parties at lis. The Finance Department, Government of Punjab, in terms of the "Notification" upgraded the post of Computer Personnel on recommendations of the committee headed by the Additional Chief Secretary and restructured it with following qualification, pay scales and designations:-

Sr.#	Existing Nomenclature	Existing Prescribed	Revised Qualification	Prescribed	Revised BPS	Revised Designation
A	B	C	D		E	F
1)	Data Entry Operator/Computer Operator/Key Punch Operator/Key Punch Verifying Operator/Composer / System Operator	FA/ICS	Intermediate + MS Office / ICS (2nd Division) with wmp speed computer		40 12	Junior Computer Operator

2)	Computer Operator / System Operator	BA/BSC	B.A. + 4 months' training in computer language / BSC 2nd Division	15	Computer Operator
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6. In the "Notification" further observations were also made which read as:

i) Where the prescribed qualification of above posts is Intermediate, it will be re-designated as Junior Computer Operator (BS-12).

ii) Where the prescribed qualification of above posts is Graduation, it will be re-designated as Computer Operator (BS-15).

7. Pursuant to above said restructuring, re-designating and prescribing qualification, the post held by the Petitioners as Data Entry Operator (BS-12) was re-designated as Junior Computer Operator (BS-12) and upgraded to Computer Operator (BS-15) w.e.f. 14.12.2018 subject to following terms and conditions:

i) That if at any stage any direction from the Controlling Authority/Finance Department is received otherwise, all concerned will be reverted to their previous scales.

ii) All the incumbents mentioned above will provide an affidavit to the effect that in case of any adverse direction in the matter is received, they will be bound to refund the amounts received in this behalf.

8. The above said terms and conditions explicitly demonstrate that the upgraded posts held by the Petitioners will be reverted to previous scales in case any direction from the controlling authority/Finance Department is received and that the Petitioners will provide an affidavit to that effect. The Petitioners after accepting above terms and conditions tendered their affidavits pursuant to which posts held by them were upgraded to Computer Operator (BS-15) by the Respondents. The Respondent No.6 in the impugned order observed that:-

"F.D. tendered the advice and stated that Administrative Department was advised that Mis Waqas Rasool, Nauman Zafar and Ghuffran Ali were appointed as Data Entry Operator with re-designation as Junior Computer Operator (BS-12). The order issued by QAED for upgradation/redesignation as Computer Operator (BS-15) is contrary to F.D.'s Notification dated 14.12.2018 and may be withdrawn immediately. As they were employed on the basis of Intermediate Qualification which was a prescribed qualification apart from the qualification which they had possessed Subsequently, they were reverted into BS-12 as a result of F.D.'s advice".

9. The above said observation makes it quite clear that the Petitioners were appointed as Data Entry Operators (BS-12) on the basis of intermediate qualification which was a prescribed qualification for the posts which quite is in line with Clause-I of the "Notification" and their subsequent upgradation to Computer Operator (BS-15) was subject to terms and conditions, referred to above, which they accepted hence at this stage, they cannot resile from the same.

10. As regards the contention of learned counsel for the Petitioners that the Petitioners' case squarely falls under Clause-III of the "Notification". Needless to add that the said clause is not relevant to the case in hand because the post of Data Entry Operator (BS-12) was neither upgraded by the Respondents/Quaid-e-Azam Academy for Education Development, Lahore nor on the personal request of the Petitioners having long stay in the same scale rather the Finance Department, in terms of the "Notification" upgraded the post of Computer Personnel throughout the Punjab on the recommendation of the Additional Chief Secretary. In assessment of suitability of a particular nature of job and its scope in the context of particular employer the Courts cannot prescribe the eligibility or experience qualifications and work experience as these are matters of policy and best be left to the department. As upgrading the post of Computer Operator (BS-15) with certain terms and conditions relates to the policy matter of the Government, therefore, Court cannot interfere into it. It is not in the domain of the Courts to embark upon an inquiry as to whether a particular policy is wise and acceptable or whether better policy could be drafted. The Court can only interfere if the policy framed is absolutely capricious and non-informed by reasons, or totally arbitrary, offending the basic requirement of the Constitution. It was for the Department to decide how and in what manner the reservations should be made and such a policy decision normally would not be open to challenge subject to its passing the test of reasonableness. The Hon'ble Supreme Court of Pakistan in "The Secretary Punjab Public Service Commission, Lahore and others v. Aamir Hayat and others" (2019 SCMR 124) has held that "courts could not interfere in lawful exercise of discretion by the concerned departments and substitute lawful decisions of the departments, by their own". In the case in hand, the Finance Department in terms of the "Notification" observed that where the prescribed qualification of the posts is intermediate, it will be re-designated as Junior Computer Operator (BS-12) and where the prescribed qualification of the posts is Graduation, it will be re-designated as Computer Operator (BS-15). The Respondent No.6 in the impugned order observed that the Petitioners were employed on the basis of intermediate qualification which was a prescribed qualification apart from the qualification which actually they had possessed. In case of "M. Nazir Ahmad v. Muhammad Aslam and others" (2013 SCMR 363) it was held that "An employer has the discretion to formulate appropriate policy viz.a.viz job qualification and criteria for various positions in line with its peculiar requirements and organizational structure hence no person had a vested right to be appointed on a post rather the authorities made a selection for the post as per criteria set out in Rules/policy and had to find the most suitable candidate for the job who could capably discharge the duties".

11. It is to be noted that the Respondents are bound to follow their statute/rules/regulations and the Courts cannot rescue any person for the relief to which he is not eligible. Furthermore, no element of mala fide on the part of the Respondent No.6 has been shown by the Petitioners towards their demotion.

12. Needless to add that judgments referred to by the learned counsel for the Petitioners cannot be relied upon being distinguishable from the facts and circumstances of the case as each and every case has its own merits.

13. In view of above discussion, I am not inclined to interfere with the impugned orders which otherwise have been passed aptly. Resultantly, the instant petition stands dismissed.

MWA/W-1/L Petition dismissed.